

Amendment No. 1 to SB0879

Crowe
Signature of Sponsor

AMEND Senate Bill No. 879

House Bill No. 684*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 3, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Inmate" means an individual incarcerated in a state correctional institution; and

(2) "State correctional institution" means a public or private facility that is operated by or under contract with the department of correction that has the power to detain or restrain, or both, a person under the laws of this state.

(b) The commissioner of human services shall provide the commissioner of correction with a form application for food assistance for use by inmates who are preparing for release. The application must include:

(1) An option for an inmate to indicate that the inmate is declining to apply for food assistance;

(2) Options for an inmate who declines to apply for food assistance to indicate the inmate's reasons for doing so; and

(3)

(A) The option for an inmate who wishes to decline to apply for food assistance to do so anonymously; or

(B) A provision authorizing a re-entry specialist from a state correctional institution to formally document an inmate's decision not to

pursue food assistance benefits by the inmate's refusal to complete the form application.

(c) The department of correction shall:

(1) Provide each inmate who is preparing for release from incarceration with a copy of the application described in subsection (b) and sufficient opportunity and means to complete the application prior to release; and

(2) Collect all applications from such inmates and return the completed applications to the department of human services.

(d) Beginning no later than January 15, 2027, and no later than January 15 of each subsequent year, the commissioner of correction shall submit a written report, which may be submitted by electronic means, to the chief clerk of the senate, the chief clerk of the house of representatives, and the legislative librarian that includes data from the previous calendar year on:

(1) The number of food assistance applications that were completed by inmates prior to release in each state correctional institution;

(2) The number of such applications on which the inmate indicated a desire to decline to apply for food assistance;

(3) Reasons inmates who declined to apply indicated as the reasons for such denial;

(4) The number of incomplete applications resulting from inmate refusals to complete the form for food assistance; and

(5) The number of inmates who were approved for food assistance prior to release from imprisonment.

(e) The commissioner of human services shall seek any waivers from the United States department of agriculture that are necessary to provide the application required by subsection (b).

(f) The commissioner of human services shall provide the commissioner of correction any data necessary to complete the report required by subsection (d).

SECTION 2. The commissioner of correction and the commissioner of human services are each authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.